

The court on its own motion continues this motion for protective order to be heard on **September 8, 2026 at 8:30 a.m. in Department 32. The clerk of the court is directed to serve a copy of this order on plaintiff at his address of record, which is listed in the court's February 5, 2026 order relieving counsel.** The court intends to reach the merits of this motion at the continued hearing.

7. S-CV-0051202 Khachadourian, Gilbert Jr. v. Cook, Richard N

Defendants Kenneth O. Daley and Holly M. Daley, Trustees of the Daley Family Trust, established November 5, 2008's Motion for Determination of Good Faith Settlement

Defendants Kenneth O. Daley and Holly M. Daley, Trustees of the Daley Family Trust, established November 5, 2008, move for determination of good faith settlement. (Code Civ. Proc., § 877.6, subd. (a)(1).) The unopposed motion is granted. Based on the standards set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settling other defendants' proportionate shares of liability for plaintiffs' injuries and therefore is in good faith within the meaning of Code of Civil Procedure section 877.6.

Defendants Richard Noah Cook and Mary Melody Cook's Motion for Determination of Good Faith Settlement

Defendants Richard Noah Cook and Mary Melody Cook, move for determination of good faith settlement. (Code Civ. Proc., § 877.6, subd. (a)(1).) The unopposed motion is granted. Based on the standards set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settling other defendants' proportionate shares of liability for plaintiffs' injuries and therefore is in good faith within the meaning of Code of Civil Procedure section 877.6.

Defendants Richard Noah Cook and Mary Melody Cook's Motion for Summary Judgment, or in the alternative, Summary Adjudication

Defendants Richard Noah Cook and Mary Melody Cook's motion for summary judgment, or in the alternative, summary adjudication, is dropped in light of the moving party's request to remove from calendar.

Defendants David Lane and Francesca Lane's Motion for Determination of Good Faith Settlement

Defendants David Lane and Francesca Lane, move for determination of good faith settlement. (Code Civ. Proc., § 877.6, subd. (a)(1).) The unopposed motion is granted. Based on the standards set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settling other defendants' proportionate shares of liability for plaintiffs' injuries and therefore is in good faith within the meaning of Code of Civil Procedure section 877.6.

Defendant City of Lincoln's Motion for Leave to Amend Answer

Defendant City of Lincoln moves for leave to file a first amended answer. Plaintiffs oppose the motion.

The court may permit a party to amend a pleading in the furtherance of justice and on such terms as may be just. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Leave to amend is generally exercised liberally provided there is no showing of prejudice to the opposing party. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) Despite the policy of liberally allowing amendments, whether to grant or deny an amendment is nonetheless “largely within the sound discretion of the trial court” and “its exercise will not be disturbed in the absence of a showing of gross abuse.” (*Jew Fun Him v. Occidental Life Ins. Co.* (1948) 88 Cal.App.2d 246, 249.)

Here, defendant seeks leave to file a first amended answer alleging defenses of design immunity under Government Code section 830.6, natural condition immunity under Government Code section 831.2, trail immunity under Government Code section 831.4, and a statute of limitations theory under Code of Civil Procedure sections 318 and 319. (Opp’n at 1-2.) Plaintiffs oppose the motion, alleging defendant did not comply with Cal. Rules of Court, rule 3.1324 (a), (b); unwarranted delay; prejudice because the late amendment would require additional discovery, increase the burden of trial preparation, or delay of the trial.

As to Rule 3.1324 (a), (b), counsel for defendant City of Lincoln states in his declaration that, “The proposed First Amended Answer (a) adds supporting facts to affirmative defenses that were previously pled in conclusory form; (b) narrows the omnibus Government Claims Act immunity defense (eighth affirmative defense) into discrete immunities tied to specific causes of action; (c) adds two immunities not previously pled — natural-condition-of-unimproved-property immunity (Gov. Code, § 831.2) and design immunity (Gov. Code, § 830.6) — each supported by facts; (d) deletes the eighteenth affirmative defense in its entirety; and (e) revises the seventeenth affirmative defense to remove (adverse possession/prescriptive easement) as inconsistent with the City’s position that it did not authorize or intend the drainage discharge at issue and bolsters the defense to claims for punitive damages against the City of Lincoln ... The facts which gave rise to this first amended answer came to light following much written discovery and percipient witness discovery including discovery of the 2023 CWE engineering report, the deposition of engineer for the Cooks, Robert F. Eynck in June of 2026, and the deposition of the Khachadourian’s former counsel, Brigit Barnes, in July of 2026.” (Mot. Amend Answer, Enos Decl. ¶¶ 2, 4.) The court finds this representation to be sufficient.

As to plaintiffs’ arguments of unwarranted delay, the court notes defendant states the request to amend arises from depositions in June and July 2026. As to prejudice because the late amendment would require additional discovery, increase the burden of trial

preparation, or delay the trial, the court notes that the court has recently granted the motion to continue trial.

Accordingly, the motion is granted.

Defendant City of Lincoln shall file and serve the first amended answer by September 4, 2026.

8. S-CV-0055232 Cunningham, Laura v. Silverstein, Karina

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Advance Trial

Appearance of the parties is required on **August 25, 2026 at 8:30 a.m. in Department 32**. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

9. S-CV-0055382 Marx, Leroy S v. Q&D Construction

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Substitute Plaintiff

Proposed plaintiff and successor in interest Ashley Duskin's unopposed motion is granted. If a cause of action survives death of a party, on motion "the court shall allow" substitution by the decedent's personal representative or, if none, by the decedent's successor in interest. (Code Civ. Proc., §§ 377.31 [decedent's cause of action]; 377.41 [cause of action against a decedent].) A successor in interest is defined as "the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." (Code Civ. Proc., § 377.11.) A person seeking to substitute into an action as a successor in interest for a deceased plaintiff must provide evidence in compliance with Code of Civil Procedure section 377.32(a).

Here, plaintiff's labor law claims are not abated by plaintiff's death and the declaration of Ashley Duskin meets the requirements of Section 377.32(a). The court finds Ashley Duskin is plaintiff Leroy S. Marx's successor in interest. Accordingly, Ashley Duskin is substituted into the case as the successor in interest for plaintiff Leroy S. Marx.